

Council: Ruling in rape case fair

KUALA LUMPUR: The Attorney-Gen-

eral's Chambers should have charged kindergarten operator Ewe Peng Lip with attempted rape of a minor and not filed for the maximum sentence, if evidence against him was weak.

The Bar Council's Criminal Law Committee chairman, Rajpal Singh, said Ewe had been acquitted as the court had charged him with statutory rape, which in this case could not be proven as evidence of penile penetration was weak.

"Why didn't the Attorney-Gener-al's Chambers file for attempted rape? Instead, they filed for a more serious charge when the evidence produced could not hold up in court."

He said Section 376 of the Penal Code stipulated that clear evidence of penetration must be provided if the accused was to be found guilty of rape.

"The A-G's Chambers would have had access to the medical report, which indicated that evidence of penetration was inconclusive, and should have reviewed the case before filing reduced charges.

"Why go for a higher charge under uncertainty when lower charges could have brought a stronger case against him?"

Rajpal said the decision by the judge, Datuk Zamani Abdul Rahim, was fair, given the facts of the case.

However, the lawyer said he was unaware of the full details and based his opinion on what had been reported in the media.

Former Court of Appeal judge Datuk Shaikh Daud Ismail queried why the prosecution team did not call the doctor who examined the alleged 4-year-old victim.

"It surprises me as the doctor responsible could have possibly shed more light on the case, but was not called to testify."

Former Bar Council president Raganath Kesavan commended Zamani for taking a stand based on the evidence. He said judges were pressured by public sentiments in cases like this and should not allow themselves to be swayed by emotions.

"Based on the evidence presented, Zamani's decision should be respected, not criticised. The fact is that there wasn't enough evidence to impose the maximum sentence and the judge acted accordingly."

He also brushed off suggestions that there was a recent trend by the judiciary to mete out lenient sentences to the accused in rape cases.

"We must review the evidence of each case separately. It is not all the same."